

Form No.HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT LAHORE

JUDICIAL DEPARTMENT

Writ Petition No.28773 of 2026

Arshad Ali and 02 others **Versus** **Member (Judicial-IV)**
Board of Revenue and 12
others

S.No.of order/ Proceeding	Date of Order/ Proceeding	Order with signature of Judge, and that of parties' counsel, where necessary.
	13.05.2026	Ch. Muhammad Lehrasib Khan Gondal, Advocate for the petitioners.

Through the instant petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioners have assailed order dated 30.10.2025 passed by the Member (Judicial-IV), Board of Revenue, Punjab, Lahore, whereby revision petition filed by petitioner No.1 Arshad Ali against order dated 18.03.2025 passed by the Additional Commissioner (Revenue), Gujrat Division, was dismissed.

2. Heard.
3. The relevant facts, necessary for disposal of this petition are that respondent No.5 Mst. Tasneem Khawar widow of Qaisar Abbas, moved an application on 22.04.2019 before the Deputy Commissioner, Hafizabad, seeking inquiry into and cancellation of mutation No.215 dated 19.07.2017. She asserted that her husband Qaisar Abbas son of Sultan Yousaf had died on 10.08.2003 but respondent No.13 Nasir Khan son of Sultan Khan in connivance with the revenue field staff managed to get the land belonging to her deceased husband incorporated in his own name through the aforesaid mutation. The application was marked to the Assistant Commissioner, Pindi Bhattian, who called for a report from the Tehsildar. The Tehsildar reported that according to the revenue record of Mauza Chak No.3 Qaisar Abbas son of Sultan was recorded as owner of land measuring 152 kanals and 02 marla on the

basis of mutations Nos.193 and 194 dated 14.04.2014 entered pursuant to notification dated 19.05.2012 issued by the Board of Revenue. It was further reported that respondent No.13 Nasir Khan subsequently moved an application before the Tehsildar, Pindi Bhattian, seeking substitution of his name in place of Qaisar Abbas. On that application, instead of Ghulam Hussain Patwari Halqa concerned, report was made by Nazar Hussain Patwari, who was not the Patwari of the relevant halqa. On the basis of that report and after recording statements of two witnesses namely Juma Khan and Muhammad Arshad son of Noor Muhammad (petitioner No.1 herein), the then Naib Tehsildar ordered correction/substitution of the name of Nasir Khan in place of Qaisar Abbas. Consequently, mutation No.215 dated 19.07.2017 was attested, whereafter respondent No.13 further alienated the land through subsequent mutations. The Assistant Commissioner, Pindi Bhattian, however, declined to interfere with the matter mainly on the grounds that the application was time-barred and that since the mutation had been challenged on the allegation of fraud, the controversy was cognizable by the civil court. The Additional Deputy Commissioner (Revenue), Hafizabad vide order dated 26.11.2019 also dismissed the application of respondent No.5 observing that the question of fraud required determination by the civil court and that litigation between the parties was already pending.

Respondent No.5 challenged the said order before the Additional Commissioner (Revenue), Gujrat Division, Camp at Hafizabad. The appeal was accepted vide order dated 18.03.2025. The Additional Commissioner observed that the Naib Tehsildar had exceeded his jurisdiction while ordering "correction of name". It was held that correction of name may be ordered by Naib Tehsildar where a person's name is otherwise correctly reflected in the revenue record

but due to clerical or typographical mistake, is wrongly mentioned in a particular jamabandi or entry; however, in the present case, the exercise undertaken was not a mere correction of name, rather, the name of one recorded owner namely Qaisar Abbas was altogether substituted with the name of another person namely Nasir Khan; such substitution had the effect of displacing the recorded owner and depriving his legal heirs of their inheritance, which could not have been done under the garb of correction of name. The Additional Commissioner further noticed that the report which formed the foundation of the so-called correction proceedings, had not been prepared by the Patwari Halqa concerned but by another Patwari who had no concern with the relevant halqa. In this background, the Additional Commissioner set aside order dated 26.11.2019, the correction order dated 17.03.2016, mutation No.215 dated 19.07.2017 and all subsequent mutations based thereon.

Petitioner No.1 Arshad Ali then filed revision petition (ROR No.1958 of 2025) before the Board of Revenue, Punjab, Lahore. The Member (Judicial-IV) after examining the record dismissed the revision petition vide impugned order dated 30.10.2025 and maintained the order dated 18.03.2025 passed by the Additional Commissioner. Hence, the instant constitutional petition.

4. The principal question requiring consideration is whether the revenue authorities lacked jurisdiction merely because respondent No.5 alleged fraud in the procurement of mutation No.215 dated 19.07.2017 or whether in the peculiar facts of the case, the revenue hierarchy was competent to correct its own record where an entry was the result of a patently illegal name-substitution proceeding. As a general rule, where a mutation is assailed on the allegation of fraud, forgery or misrepresentation and the controversy involves adjudication of disputed civil rights or

determination of title between rival claimants, the proper forum is the civil court. Such controversies ordinarily require recording of evidence, examination and cross-examination of witnesses and adjudication upon questions which fall outside the summary jurisdiction of revenue officers. This principle, however, cannot be applied mechanically or in isolation from the nature of the entry under challenge. The case in hand does not involve an ordinary mutation of sale, gift, exchange, inheritance or any other recognized mode of transfer of rights in immovable property where rival parties claim title on the strength of competing civil transactions. The foundation of the claim of respondent No.13 was not a conveyance from Qaisar Abbas or his legal heirs. Rather, the entire edifice was raised upon a so-called “correction of name”, whereby the name of Qaisar Abbas, who was already recorded as owner in the revenue record, was substituted with the name of Nasir Khan. Such an exercise was not a mode of transfer of ownership known to law. A recorded owner cannot be divested of his estate nor can another person be inducted in his place as owner merely by styling the exercise as correction of name.

5. Correction of revenue record is permissible only within its lawful limits. A revenue officer may correct clerical, typographical or accidental mistakes, for example, where a name has been wrongly spelt or incorrectly carried forward in a subsequent jamabandi despite the correct position being otherwise available in the previous record. However, where the so-called correction results in complete substitution of one person by another in the ownership column, the matter ceases to be a simple clerical correction. Such substitution materially affects rights recorded in the revenue record and therefore, can be made only in accordance with the mandate of law on the basis of admitted or proved facts, lawful succession, valid transfer, consent of

interested parties or decree/order of a competent forum. In the absence of any such lawful foundation, a revenue officer has no jurisdiction to replace one recorded owner with another. Viewed from this perspective, the orders passed by the Additional Commissioner (Revenue) and the Member Board of Revenue do not amount to adjudication of civil title *inter se* the parties. The revenue authorities did not declare respondent No.5 or the heirs of Qaisar Abbas to be owners on the basis of any independent civil title after resolving a private dispute of ownership. They merely examined whether mutation No.215 which had changed the name of the recorded owner through correction proceedings, was sustainable under the revenue law and procedure. Upon finding that the foundational proceedings were without lawful authority, they restored the matter to its proper revenue course by setting aside the tainted mutation and consequential entries. Once the very basis of mutation No.215 was found to be without lawful authority, the subsequent mutations being dependent upon and flowing from the said entry, could not independently survive. In the case of “Rehmatullah and others v. Saleh Khan and others” (2007 SCMR 729) the Supreme Court of Pakistan held that when the basic order is without lawful authority, the entire superstructure built thereon falls to the ground automatically. The principle squarely applies to the case in hand, for the subsequent alienations and entries were only consequential to the initial unlawful substitution of name and as such necessarily fell with it.

6. There is a clear distinction between adjudicating a disputed title and correcting an erroneous entry in the revenue record. The former ordinarily falls within the domain of the civil court, whereas the latter lies within the supervisory and corrective jurisdiction of the revenue authorities, particularly where the illegality is apparent from the revenue record itself. The jurisdiction exercised in the

present case was, therefore, not directed at deciding a complex civil dispute but at cleansing the revenue record of a foundational defect. Mutation No.215 was based on a process which, on the face of the record, suffered from serious legal infirmities. The report was not made by the Patwari of the concerned halqa; the witness Arshad Ali, petitioner No.1, later became purchaser from the beneficiary of the correction; the other witness Juma Khan was found not to be resident of the relevant chak; and the so-called correction resulted in complete substitution of the recorded owner. These defects were not minor irregularities but went to the root of jurisdiction. In such backdrop, relegating the parties to the civil court as a matter of course would defeat the very purpose of the corrective jurisdiction conferred upon the revenue authorities. I am fortified in my view from the judgment in the case of “Mst. Gulzar Bibi and 2 others v. Chief Commissioner, I.C.T. and 19 others” (2009 CLC 542). In the said case, the Collector, Islamabad, upon a complaint and field report regarding tampering in various revenue entries of Mauza Jhangi Syedan, directed correction of the revenue record, however, when the Chief Commissioner, I.C.T., in revision, referred the parties to the civil court, the Islamabad High Court after examining the relevant case-law¹ set aside the revisional order and restored the corrective jurisdiction of the revenue hierarchy. Relevant excerpt from the said judgment is reproduced below:--

“9. On examination of the case-law, I am of the opinion that the revenue Courts have exclusive jurisdiction under section 172 of the Land Revenue Act, 1967 to direct correction of an entry in the revenue record even if it is in the settlement record, old and longstanding, if not supported by any decree, order or judgment of the Court and varied in violation of section 45 of Revenue Act.

10. - - - -

¹ PLD 1966 W.P. (Rev.) 80, PLD 1967 W.P. (Rev.) 9, PLD 1991 Lah.314, 1992 SCMR 1334, 1998 CLC 1216, PLD 1968 SC 185, PLD 1994 Pesh.249, 1994 MLD 2254 (Lahore), 1996 CLC 1690 (Board of Revenue Punjab), 2002 YLR 2249 (Lahore), 2004 SCMR 604, 2004 YLR 2992, 2006 CLC 876.

11.-----

12. *Interpolation and tampering of revenue record is floating as mentioned in para.11. No judgment, order or proof regarding acquisition of ownership is available with the respondents in support of entries made in their favour. Driving the parties to civil litigation, which is spread over decades, will not be in the interest of justice in a case of such a nature not involving any complicated question of fact calling for evidence. Jurisdiction vested in revenue hierarchy, if not exercised, then provisions of Land Revenue Act are to become redundant.*

13. *Considered from all aspects, the entries made in the revenue record in clear disregard to provisions of section 45 of Land Revenue Act, 1967, by practicing fraud cannot be given blessing. Such entries are required to be corrected as and when brought to the notice of revenue officers. The Chief Commissioner has closed his eyes to the factual position and went for technical knock out. . . . ”*

In the instant case, both revenue forums, i.e., the Additional Commissioner (Revenue), Gujrat Division, Gujrat and the Member Board of Revenue, Punjab, Lahore, examined the matter in detail, adverted to the original record and passed well-reasoned orders dated 18.03.2025 and 30.10.2025, respectively. Learned counsel for the petitioners has not been able to point out any illegality, perversity or jurisdictional defect in the impugned order.

7. For the foregoing reasons, this petition is devoid of merit and is dismissed as such *in limine*.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

*Azhar**